

were due to minor, clerical errors. What's more, Defendant had already included a proposed answer with their earlier motion to set aside the default judgment, so this is not a case where Plaintiff is caught by surprise.

The furtherance of justice compels this court to allow the filing of the late Answer in this matter.

Disposition

Plaintiff's Motion is Denied.

Defendant to file Order.

6. 9:00 AM CASE NUMBER: L25-03749
CASE NAME: BRIAN BURNETT VS. KILLARNEY PROPERTIES
FOR ORDER TO SHOW CAUSE AND SANCTIONS FOR VIOLATION OF COURT ORDER
FILED BY: BURNETT, BRIAN
TENTATIVE RULING:

Plaintiff has a filed a motion requesting this court to issue an order show cause for Plaintiff's apparent violation of a 4/14/26 Order in which this court directed Defendant to file their Answer within 10 days.

The Plaintiff requests sanctions under various statutes, such as: CCP 128 (Contempt); CCP 177.5 (Court's general power to issue sanctions for order violations); CCp 575.2 (Sanctions for violations of local rules); and, CRC 2.30 (general sanctions authority for rule violations).

Background and Analysis

The court, in its analysis on Plaintiff's separate motion in this matter stemming from the same issue, found that though Defendant may have filed their Answer nearly 2 weeks late, Defendant made a good faith effort to comply with the court's order and, had it not been for 2 minor clerical errors, would have successfully filed their Answer before the proper deadline.

This court does not find that Defendant engaged in any conduct that would warrant sanctions.

Disposition

Plaintiff's Motion is denied.

Defendant to file Order.

7. 9:00 AM CASE NUMBER: L25-05850